

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX **X**

FROYLAN SUAZO,

Index No.

Plaintiff,

ECF

Verified Complaint

-against-

**Plaintiff Designates Bronx
County as the Place of Trial**

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DENNIS, OF THE 48th
PRECINCT, IN HER INDIVIDUAL CAPACITY AND POLICE
OFFICER JOHN DOE OF THE 48th PRECINCT, IN HIS
INDIVIDUAL CAPACITY

Jury Trial Demanded

Defendants,

X

Plaintiff, Froylan Suazo, by his attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and police officers Dennis and John Doe of the New York City Police Department ,

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the unreason seizure of the Plaintiff on September 12, 2019, outside of Plaintiff's residence located at 825 Fairmount Pl., Bronx, New York.

2. Defendants, Police officers Dennis and John Doe knowingly and willfully abused their authority by arresting Mr. Suazo without probable cause to have reasonably believed that Plaintiff had committed a crime.

3. Mr. Suazo had arrived home from work on the morning in of September 12, 2019, when he encountered difficulty in unlocking the gate outside his home.

4. Mr. Suazo made several attempts to unlock the gated leading to his home when he realized that the lock allowing him entrance to his home had been changed by his wife, Delia Suazo.

5. Mr. Suazo believing that his rights had been violated by his wife called the New York City Police Department through the 911 emergency call system

6. The Defendant police officers arrived and question Mr. Suazo regarding his inability to enter his home because he believed that his wife, who was inside the house, had unlawfully locked him out of the house which he owned for twenty years.

7. The officers called Ms. Suazo and asked her to come outside. Once outside, the officers questioned her outside the presence of Mr. Suazo and proceeded to arrest the Plaintiff without explanation.

8. The officers took Mr. Suazo to the 48th police precinct and then to central booking. Plaintiff was released from custody after being held for approximately eight (8) hours without any formal charges filed against him.

9. Mr. Suazo now brings this action pursuant to 42 U.S.C Section 1983, and under New York State Law for the violations of his constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States and pursuant to New York State law.

JURISDICTION AND VENUE

10. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the Bronx, and State of New York.

11. This action arises under the Fourth, and Fourteenth Amendments to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983, and 1988, and under New York State Law.

12. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action predicated under 42 U. S. C. Section, 1983.

13. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the Bronx, and of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

14. Plaintiff, Froylan Suazo is a sixty-one year of black male who at all relevant times herein was and still remains a resident of the county of the Bronx, State of New York. Mr. Suazo is a citizen of the United States. Mr. Suazo was employed as a commercial bus driver with the New York City Department of Education. Plaintiff holds Class B commercial drivers' license.

15. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

16. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

17. That at all times relevant hereto, the City of New York employed the Defendant Officers involved in this incident.

18. That at all times relevant herein, Defendants Police officers Dennis ,and John Doe

No. 1, were duly appointed as police officer of the New York City Police Department and were involved in the incident underlying this lawsuit were at all times mentioned in this complaint, agents, servants, and employees, acting within the scope of their employment by the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

19. That at all times relevant hereto, the New York City Police Department ("NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

20. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, policies and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

21. That at all times relevant hereto, Defendant New York City Police Department was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

22. That at all relevant times, the individual police officers involved in this incident acted under the color of state law.

23. At all times relevant herein , the police officers involved in the underlying incident were and still remain police officers employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department within the scope of their employment and as such acted under color of state law.

24. That at all times mentioned herein, Defendants police officers Dennis and John Doe No. 1, whose name being fictitious and unknown to the Plaintiff, are currently employed by the New York City Police Department as police officers believed to be assigned to the 48th police precinct.

JURY DEMAND

25. Plaintiff demands trial by jury.

NOTICE OF CLAIM

26. On or about October 4, 2019, Plaintiff, in furtherance of his New York State causes of action, filed a timely notice of claim well within the statutory requirement of ninety days from the date of the incident alleged herein against the named Defendants and the City of New York, New York City Police Department and police officers Dennis and John Doe No. 1, in compliance with General Municipal Law Section 50-h.

27. On October 9, 2019, the Comptroller of the City of New York acknowledge receipt of Mr. Suazo's timely filed Notice of Claim by assigning claim number 2019PI027230.

28. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

29. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

30. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

31. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

32. That by reason of the foregoing, Plaintiff, Froylan Suazo has been damaged in a

sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

33. On 12, 2019, at approximately 4: 30 pm, Mr. Suazo arrived home from work as a as a Certified Pupil Transportation Driver for the New York City Department of Education and found the lock to the gate outside his home had been changed.

34. Mr. Suazo suspected that his wife intentionally locked him out of his house because he and his wife had been estranged for several months.

35. Mr. Suazo and his wife had not been involved in any form of a confrontation on this day or on any other day for which he was subject to an arrest.

36. Plaintiff called 911 to file a police report accusing his wife of illegally locking him out of his home.

37. After waiting in front of his home for approximately 1 hour, two police officers, officer Dennis, and one unidentified officer, John Doe arrived at Mr. Suazo's home on 825 Fairmount Pl. Apt 1, Bronx, New York and met with the Plaintiff.

38. Mr. Suazo was standing outside speaking with the two police officers, one male Caucasian officer, and one female, who spoke briefly with the Plaintiff as to the nature of his emergency call.

39. Ms. Suazo saw the officers and her husband standing outside the house and opened the door to the house .

40. The officer told Ms. Suazo that they wanted to speak with her.

41. Ms. Suazo unlocked the gate and allowed the officers to enter.

42. The officers spoke briefly with Ms. Suazo for approximately five (5) minutes.

43. The officers then approached Mr. Suazo and told him to put his hands behind his back whereby they proceeded to handcuff Plaintiff's hands behind his back.

44. Mr. Suazo asked the officers repeatedly why he was being arrest. The Defendant officers gave Plaintiff no reason as to why he was placed in handcuffs as his neighbors watched and arrested.

45. The arresting officers placed Mr. Suazo in their vehicle and drove Plaintiff to the 48th police precinct where he was fingerprinted and photographed. No explanation as to why the Plaintiff was arrested.

46. Mr. Suazo had not spoken to his wife for three or four months no had the two of made any form of contact for which Mr. Suazo could have been subjected to an arrest.

47. Suazo was arrested and transported to the 48th police precinct in the Bronx, New York. Plaintiff was held at the precinct for approximately two hours.

48. Mr. Suazo was then taken to central booking at 215 East 161st Street, Bronx, New York, where he was placed inside a cell and photographed, fingerprinted, and released after being held for six hours without any formal charges filed against him.

49. Mr. Suazo was not arraigned nor did he appear in court.

50. No charges were filed against the Plaintiff by the New York City Police Department or the Bronx District Attorney's office.

51. The officers at central booking told Mr. Suazo that he was free to leave and that no charges were filed against him.

52. Mr. Suazo requested a police report and was told that there wasn't a police report in possession of the New York City Police Department.

53. On September 16, 2019, Mr. Suazo appeared at the Bronx Criminal Court to request a copy of his arrest report.

54. Mr. Suazo was given a letter issued from the Criminal Court located at 215 East 161st street, Bronx, New York by Mr. Edward Grionlo, C.A., which indicated that Mr. Suazo's arrest was not docketed and that no Criminal charges were filed against him.

55. The letter also stated that no charges were filed and assigned arrest number B19637662 to Mr. Suazo's arrest.

56. On September 13, 2029, Mr. Suazo received notification for his employer, New York City Department of Education that the Office of Personnel Investigation (NYCDOE) had been notified of his arrest on September 12, 2019, for criminal Mischief in the 4th Degree and Harassment in the 2nd Degree.

57. The NYCDOE informed Mr. Suazo that under Chancellor's Regulation C-105, "You are required to bring a copy of the criminal court complaint police report pertaining to the able listed arrest. You should also bring any additional documentation relevant to the recent arrest, including but not limited to the arrest report, ... a desk appearance ticket, etc. Additionally, within three business days of the outcome, you must submit an ORIGINAL Certificate of Disposition (COD) demonstrating the end of the criminal matter. The COD must include an embossed seal." **New York City Department of Education.**

58. The letter from the NYCDOE informed Mr. Suazo that he was suspended pending the resolution of the criminal matter.

59. Mr. Suazo submitted the letter he received from the court indicating that no charges were filed against him from his September 12, 2019, arrest.

60. The fact that Mr. Suazo could not present a Certificate of Disposition to his employer because the criminal court did not provide him a copy because Plaintiff's arrest was not docketed caused Plaintiff to remain unemployed.

61. Mr. Suazo has lost significant income due to the Defendant officers' false arrest of the Plaintiff.

62. That the officers lacked probable cause for Plaintiff's arrest.

63. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely arrested and imprisoned, detained, restrained, and falsely accused Plaintiff of crimes for which the officers knew Plaintiff had not committed.

64. That at all times herein mentioned the Plaintiff was falsely imprisoned, detained, and restrained by Defendant, police officers Dennis and John Doe No.1 who were acting under color of law and within the scope of their employment.

65. That as a result of the false arrest and imprisonment of Plaintiff Froylan Suazo by officers Dennis and John Doe No.1, Plaintiff was caused to suffer emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom without due process of law and without probable cause.

66. That due to the abrupt dismissal of charges for which Plaintiff was arrested, Plaintiff was not brought in front of a judge to have his arrest sealed.

67. Mr. Suazo's emotional stress and anxiety has been exacerbated due to the fact that his arrest record has not been sealed.

68. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Mr. Suazo was caused to suffer severe and extensive emotional pain, anguish and suffering and harm.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANT POLICE OFFICERS DENNIS AND JOHN DOE NO. 1, PURSUANT TO 42 U. S. C. SECTION 1983, FOR FALSE ARREST AND FALSE IMPRISONMENT IN VIOLATION OF THE FOURTH AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES.

69. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 68", with the same force, and effect, as though more fully set forth at length herein.

70. Defendants police officers Dennis and John Doe No1, unreasonably initiated Plaintiff's arrest, and detention without probable cause to have reasonably believed that Mr. Suazo had committed a crime.

71. The officers failed to obtain information from Mr. Suazo prior to his arrest to challenge any allegation made by his wife that Plaintiff had committed a crime.

72. The Defendant police officers Dennis and John Doe No. 1, knew or should have known that it was Mr. Suazo who called 911 for assistance due to the fact that his wife engaged in an illegal lockout, i.e. a constructive eviction of Mr., Suazo and that there were no circumstances that a reasonable police officer would have found to justify Mr. Suazo's arrest.

73. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely arrested and imprisoned, detained, and restrained Mr. Suazo without legal justification.

74. That at all times herein mentioned the Plaintiff was falsely imprisoned, detained, and restrained by officers Dennis and John Doe No. 1, who were acting under color of law and within the scope of their employment.

75. That as a result of the false imprisonment of Plaintiff Froylan Suazo by the Defendants, their agents, servants and/or employees, Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom without due process of law and without probable cause.

76. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, MR. Suazo was caused to suffer severe and extensive emotional pain, anguish and suffering and harm.

77. That in the manner described herein, the Defendants acted carelessly and recklessly with total disregard of the Plaintiff's constitutional rights.

78. That the Defendants knew, or should have known that their actions would or probably would inflict emotional distress upon the Plaintiff.

79. That at all times mentioned herein, Plaintiff was aware of and did not consent to his confinement.

80. That the false imprisonment, detention, and restriction of Plaintiff's freedom, constituted a malicious act, and was a wanton and reckless degradation of the plaintiff's liberty and freedom.

81. That as a result of the false imprisonment, detention, and unreasonable search and seizure of the Plaintiff by the Defendants, their agents, servants and/or employees, Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of his liberty and freedom secured under the Fourth Amendment to the Constitution of the United States without probable cause or legal justification.

82. That by reason of the foregoing the Plaintiff, Froylan Suazo has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
UNDER 42 U.S.C. SECTION 1983, FOR FAILURE TO TRAIN, SUPERVISE OR
DISCIPLINE DEFENDANTS POLICE OFFICERS DENNIS AND JOHN DOE No. 1 .**

83. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 82", with the same force and effect as though more fully set forth at length herein.

84. That at all times herein mentioned the individual Defendants of the New York City Police Department involved in the incident complained of herein, were negligently hired, trained, supervised, disciplined, and retained by the City of New York.

85. That the acts complained of herein resulted from the Defendants City of New York, and the New York City Police Department, through their agents, servants and employees, breaching its duty to properly assign, train, supervise, discipline and retained its employees within the New York City Police Department with regards to training its officers in investigating allegations of domestic disputes .

86. That the City of New York failure to train, supervise, or discipline Defendant police officers Dennis and John Doe No.1, which caused Plaintiff Froylan Suazo to suffer and unlawful detention, incarceration and undue extreme emotional stress.

87. That the failure by the City of New York to properly train, supervise or discipline the Defendant police officers and other members within the New York City Police Department constituted a practice of acquiescence, and a tolerance of ongoing unconstitutional detentions,

and seizures, which allowed officers Dennis and John Doe No. 1, to believe that they could violate Plaintiffs' constitutional rights with impunity.

88. By reason of the foregoing, officers Dennis and John Doe No. 1, and other members of the New York City Police Department, its agents, servants and employees, failed, and refused to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances, thus resulting in significant emotional injuries to the Plaintiff including his loss of liberty and permanent emotional distress.

89. That the City of New York should be held liable for the underlying constitutional violations committed by non-policy makers employees due to the fact that the City's policy and customs of arresting individuals such as Mr. Suazo is objectively deliberately indifferent to the likelihood that a constitutional violation would occur.

90. That based on the failure by the Defendant police officers, Dennis and John Doe No.1, to conduct a proper investigation of the illegal eviction of the Plaintiff there was an obvious need for additional training and supervision which the City of New York was aware of and failed to provide which caused Plaintiff's unlawful detention.

91. That by the conduct of the Defendants, as described herein, the City of New York is liable to the Plaintiff under 42 U.S.C. Section 1983 for the violations, under color of state law for violating Plaintiff's right to be free from deprivation of liberty without due process of law under the Fourth and Fourteenth Amendment to the United States Constitution.

92. That the failure of the City of New York, and the New York City Police Department to adequately train, supervise or discipline or in any other way control the behavior of the officers associated with Mr. Suazo's unlawful arrest and detention in the exercise of their official

functions, is evidence of the reckless lack of cautious disregard for the rights of the Plaintiff, Froylan Suazo.

93. That such conduct, or lack thereof, exhibited a lack of the degree of due care which a reasonable and prudent police officer would have shown in executing the duties as police officers within the New York City Police Department.

94. That the need for more or better supervision, or training to protect against the constitutional violation was patently obvious which the City of New York failed to provide.

95. As consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST POLICE OFFICERS DENNIS AND JOHN DOE NO.1, PURSUANT TO
42 U. S. C SECTION 1983, FOR THE VIOLATION OF PLAINTIFF'S RIGHTS
UNDER THE DUE PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT
TO THE CONSTITUTION OF THE UNITED STATES**

96. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through 95", with the same force and effect as though more fully set forth at length here herein.

97. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of plaintiffs' right to free from the deprivation of liberty without due process of law.

98. As direct and proximate result of the acts and omissions of the Defendant police officers Dennis and John Don No. 1, including their supervisors and other members of the New York City Police Department, Froylan Suazo has been greatly humiliated, embarrassed, and injured, and has been caused to suffer extreme emotional pain, suffering, and mental anguish.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS FOR
FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO NEW YORK STATE
LAW**

99. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 98”, with the same force, and effect, as though more fully set forth at length herein.

100. Defendants initiated Plaintiff’s imprisonment and detention without probable cause to have reasonably believed that Mr. Suazo had been involved in any form of criminal activity..

101. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely imprisoned, detained, restrained, assaulted, and battered Plaintiff, Froylan Suazo.

102. That at all times herein mentioned, the Plaintiff was falsely imprisoned, detained, and restrained by the Defendants police officers who were acting under color of law and within the scope of their employment.

103. That Mr. Suazo was not free to leave or move about due to his unlawful seizure by the Defendants, police officers Dennis and John Doe NO.1.

104. Mr. Suazo was conscious of his confinement and did not consent to such confinement.

105. That as a direct and proximate result of the physical restraint of the Plaintiff by the Defendants, their agents, servants and/or employees, Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom under the laws of the State of New York pursuant to Article 1 Section 12..

106. That the Plaintiff was intentionally confined without privilege or probable cause and that the Defendants could not have reasonably believed that Mr. Suazo had committed a crime.

107. That the false imprisonment, detention, and restriction of Plaintiff's freedom, constituted a malicious act, and was a wanton and reckless degradation of the plaintiff's liberty and freedom.

108. That by reason of the foregoing Plaintiff, has been damaged a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE CITY OF NEW
YORK FOR RESPONDEAT SUPERIOR.**

109. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "108" with the same force and effect as though more fully set forth at length herein.

110. That at all relevant times the Defendants acted under pretense of color of state law and the alleged underlying acts were without authority of law in abuse of governmental powers.

111. That the municipal Defendants City of New York, and the New York City Police Department hired, and supervised, Defendants, police officers Dennis and John Doe No.1.

112. Officers Dennis and John Doe No. 1, falsely arrested, detained and confined Plaintiff without probable cause.

113. The Defendant police officers knew or should have known that Mr. Suazo had just called 911 for police assistance due to the fact that his wife had unlawfully lock him out of his house where he had been lawfully living in for twenty years.

114. That he Defendant police officers knowingly and willfully disregarded Mr. Suazo's plea for help and arrested Plaintiff without cause and without informing the Plaintiff why he had been arrested.

115. That the acts committed by the Defendant officers were conducted while the officers were acting within the scope of their employment as employees of the New York City Police Department.

116. As a result, the City of New and the New York City Police Department are liable for the unlawful acts of police officers Dennis and John Doe No. 1, under the well-established doctrine of Respondeat Superior.

117. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Mr. Suazo was caused to suffer severe and extensive emotional pain, anguish and suffering and harm.

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

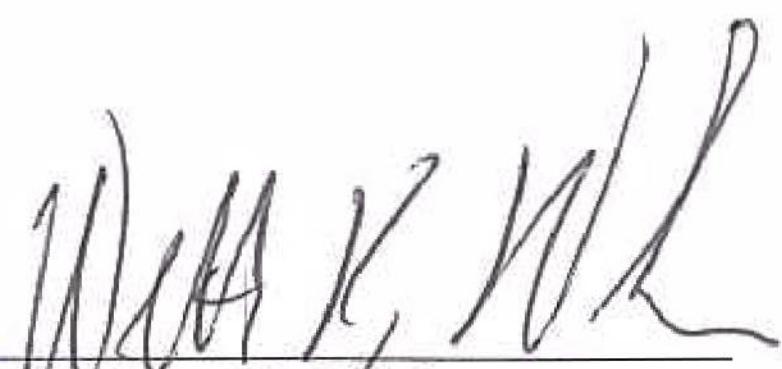
B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants police officers Dennis and John Doe No.1, for their willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

C. An award to plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees pursuant to 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated: April 11, 2020
Bronx, New York

By 

Welton K. Wisham

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